COMPLETE MEDIATION BINDER AS DELIVERED — AUDITED, APPROVED BY ATTY. THORNE 03/10/2027, DELIVERED 03/11/2027 · FILE COPY

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Matter LSH-2026-MVA-770412 · Track B
No. 26-CV-04417, State Court of Riverton County

MEDIATION BINDER — MASTER INDEX AS DELIVERED

John Doe v. Robert Smith · mediation 03/18/2027, 9:30 a.m., before Hon. Carla Benton (Ret.) · Benton ADR, 410 Court Square, Riverton, Suite 300, with a video link for the carrier representative

Built from: the Demand Package served 07/20/2026, Exhibits A–J, re-audited to the certified records in hand
Delivered: 03/11/2027, seven days before the session, as the mediator's confirmation requires
Set: Sections 1–6, 141 pages, Bates LSH-MED-000001 through LSH-MED-000141, OCR-searchable and bookmarked
Approved: Atty. Elijah Thorne, 03/10/2027, with the audit memo at Section 1

§	Section	Contents as delivered	Pp.	Bates
1	Case snapshot and audit memo	Matter LSH-2026-MVA-770412, No. 26-CV-04417; parties, counsel and carriers with every contact verified 03/05/2027; mediator, date, start time, location and the carrier's video link, taken from the mediator's confirmation; fee split as the mediation order provides. Audit memo: the two landmines found in the draft, and their fixes.	6	LSH-MED-000001–06
2	Confidential mediation statement	Statement of position, 11 pp., every page marked **CONFIDENTIAL — FOR THE MEDIATOR ONLY**, routed to and approved by Atty. Thorne 03/10/2027, delivered to the mediator alone. One copy only; no copy tabbed for defense counsel or the carrier. The internal Master Case Summary is not in this binder.	11	LSH-MED-000007–17
3	Pleadings and the defense map	Complaint filed 09/24/2026 (No. 26-CV-04417, pleading bodily injury, with Margaret Doe's property damage counts) and the Answer & Affirmative Defenses of 11/12/2026 — operative versions only; the pre-filing draft is not in the set. The defense map follows, each pleaded allegation against the exhibit that answers it.	24	LSH-MED-000018–41
4	Liability, the record and the deposition	Certified Police Report RPD-26-018842; Ruth Calloway's signed statement; four doorbell stills **in color, from the native file**, with the preservation and chain-of-custody log (copy secured 02/19/2026, hash unchanged); event data recorder download (belt buckled, 11 mph); Riverton Fire EMS Run Report; Keystone's letter of 02/17/2026 accepting property damage liability; summary of John Doe's 02/18/2027 deposition with the certified transcript pages on the gap, the April disruption, the 2021 visits and the seatbelt.	41	LSH-MED-000042–82
5	Damages, rebuilt from the certified records	Treatment chart; medical ledger rebuilt line by line from the certified bills in hand; Northgate wage-and-attendance letter; lien summary with each figure proved by the plan's or the provider's own writing.	37	LSH-MED-000083–119

		Property damage is set out separately, outside the $40,000 stack.		
6	Settlement posture and the documents of settlement	Negotiation Log, 07/20/2026 to 09/24/2026; Keystone's offer letter of 08/05/2026; the rebuttal of 08/06/2026; the draft Limited Release, limited to Robert Smith and Keystone Mutual; the drafted consent-to-settle requests to Harbor Point and Cardinal State. The 09/08/2026 impasse memo is held in the attorney's set, flagged for Atty. Thorne's privilege decision.	22	LSH-MED-000120–141
		AS DELIVERED	**141**	**LSH-MED-000001–000141**

Section 3 — the defense map

Pleaded in the 11/12/2026 answer	Answered by
The Escape entered the intersection out of turn	Police Report RPD-26-018842 and the citation; Ruth Calloway's statement; the color doorbell stills and the video. Whether an alleged out-of-turn entry by the host driver can affect a passenger's recovery is a legal question flagged for Atty. Thorne; confirm the governing rule.
Mr. Doe was unbelted	Event data recorder: front passenger belt buckled at impact. EMS Run Report: "restrained front-seat passenger." Whether seatbelt evidence is admissible, or can reduce damages here, is flagged for Atty. Thorne; confirm the governing rule.
The fourteen days before first treatment break causation	EMS Run Report, neck stiffness on the date of loss; Gap Explanation Record with each underlying record; Dr. Reyes's Causation Letter of 06/19/2026.
The findings are degenerative, not traumatic	Dr. Helen Park's MRI read: "no significant degenerative change at the adjacent levels," with the corrected history addendum of 07/15/2026; the 2021 records, low back only, resolved.
Failure to mitigate — the April break in therapy	The A-C-T record: rental ended 03/19/2026, carpool ended 04/01, evening appointments from 04/21, attendance confirmed 04/21 and 04/23, course of care completed. Attendance log, 33 visits.

Section 5 — the audited ledger and the liens

Provider / source	Certified record it ties to	Amount
Riverton Urgent Care	Statement, DOS 02/20/2026, paid in full by Harbor Point MedPay 03/09/2026	$685.00
Riverton Spine & Rehab	33 attended visits × $185.00, tied to the attendance log; the second 05/04/2026 line removed as a duplicate. **Marked "Pending Final Verification"** until the Final Itemized Ledger requested 02/08/2027 arrives.	$6,105.00
Lakeside Orthopedics	Statement, 3 visits × $640.00, paid by MedPay	$1,920.00
Summit Imaging Center	Invoice 03/13/2026, paid by MedPay 03/25/2026	$2,395.00
Crescent Pain & Spine	Charge for the 05/15/2026 injection, **satisfied in full by Peach State's $1,860.00 contract payment**; the $1,540.00 was a contractual adjustment the in-network provider cannot bill the member. Corrected $0.00 patient statement enclosed.	$3,400.00
Riverton Drug	Receipts and Rx history, 02/07–06/12/2026	$312.40
	Medical specials	**$14,817.40**
Northgate Distribution	Wage-and-attendance letter 06/30/2026: 9 shifts × 8 h × $22.00	$1,584.00
	TOTAL SPECIAL DAMAGES — the same figure the Demand Package served 07/20/2026	**$16,401.40**

Open claim against the recovery	Proved by	Amount
Peach State Health Plan, reimbursement	Notice of 02/27/2026 and its itemization; the Crescent EOB	$1,860.00
Riverton Spine & Rehab, LOP account	Audited ledger, 33 visits, pending the Final Itemized Ledger	$6,105.00
Crescent Pain & Spine	Paid in full by the plan at the contract rate; no balance to bill	$0.00
Harbor Point MedPay	Letter of 03/02/2026: no reimbursement right	$0.00
	OPEN LIENS	**$7,965.00**

Property damage, outside the $40,000 stack. Loss of Use, 48 days × $42.00 = $2,016.00; Diminished Value $3,600.00 on the independent appraisal against Keystone's $792.00. Set out in its own schedule so no figure in it reaches the bodily injury ledger.

What the audit changed, and why it mattered.

In the draft	As delivered	What it would have cost
Ledger assembled from the providers' original bills: medical $15,002.40, Riverton Spine & Rehab at $6,290.00 on 34 lines	Rebuilt from the certified bills in hand: medical $14,817.40, Riverton Spine & Rehab at $6,105.00 on 33 attended visits, marked pending final verification	Atty. Mercer was right that the ledger was unverified. A figure that does not tie to a certified bill is the reason a carrier declines to put a number on the table.
Crescent shown as a $3,400.00 open balance, and listed to the mediator among the open balances	Shown satisfied by Peach State's $1,860.00 contract payment; nothing owed; open liens $1,860.00 + $6,105.00 = $7,965.00	$3,400.00 conceded to a provider that cannot bill it, straight out of John Doe's net.
Pre-filing draft of the Complaint in Section 3	The filed Complaint of 09/24/2026	An unsigned draft with no case number, and no property damage pleaded, used as the operative pleading in front of the mediator.
Grayscale doorbell stills	Color stills from the native file with the chain-of-custody log	The clearest liability proof on the file, unreadable at the moment it is needed.
Section 1 left the start time and location "to be confirmed" and assumed a 50/50 mediator's fee	Start time, location and the carrier's video link taken from the mediator's confirmation; the fee split read from the mediation order	A binder nobody can run the morning from, and a fee split the firm never agreed to.
Section 2 carried the confidential statement as draft 1, not yet routed	Approved by Atty. Thorne 03/10/2027, every page marked for the mediator only, one copy	A draft of our own position going out unapproved, or reaching the other side.

Deposition transcript received, summary not added	Summary at Section 4 with the transcript pages on the gap, the April break, the 2021 visits and the seatbelt	The one record of what John Doe actually said under oath, left out of the room.
No defense map; Section 6 held the Negotiation Log but no release and no consent requests	Five pleaded allegations mapped to answering exhibits; the draft Limited Release and both consent requests added at Section 6	Every pleaded defense answered by a sentence instead of a page, and nothing to sign if the file settles on the day.
Property Damage nowhere in the binder, though the Complaint pleads it	Set out in its own schedule, outside the $40,000 stack and marked as Margaret Doe's claim	A pleaded count the mediator never sees, and a figure that could drift into the bodily injury ledger.
Delivery read off the Scheduling Order as 03/31/2027	Delivered 03/11/2027, with 03/31/2027 kept as the court's completion deadline	03/31/2027 is the court's "mediation completed by" deadline, not the session date. The binder is due seven days before the 03/18/2027 session.

Delivery record. Approved by Atty. Elijah Thorne 03/10/2027. Delivered 03/11/2027: the full binder and the confidential statement to Hon. Carla Benton (Ret.) by secure link, logged; the binder without Section 2 to Atty. Grant Mercer and to Keystone's representative, logged. Keystone confirmed on 03/12/2027 that its representative will attend with full settlement authority. Master index maintained in CMS → Litigation → Exhibit index, which governs; the printed binder is a copy of it.